

MT204

Module-1, Historical Background: Indian Constitution

Introduction

- A constitution is a document having special legal sanctity that lays down the legal framework of the country, along with the principal function of organs of the government. Further, it also sets out the principal guidelines for operation of those organs of the government. Indian constitution is both flexible and rigid and consists of:
 - Preamble
 - Articles
 - Schedule, &
 - Appendices

Preamble

- Our constitution begins with a preface or introduction called the preamble. It highlights the goals and aspirations of the Indian people. Some of the special features of preamble are:
 - Sovereign Liberty
 - Socialist Equality
 - Secular Fraternity
 - Democratic
 - Republic
 - Justice

Fundamental rights

- The constitution of India assures its citizens certain fundamental rights or basic rights. These rights are guaranteed by the constitution and have legal sanction, i.e., they can be enforced in the court of law. They include political, social, cultural and economic rights. They are:
 - Right to Equality
 - Right to Freedom
 - Right to Freedom of Religion
 - Right to Cultural & Educational Rights
 - Right against Exploitation
 - Right to Constitutional Remedies.

Fundamental duties

- All rights come with certain duties. The constitution of India also lays down a list of fundamental duties. According to 42nd amendment of our constitution enacted in 1976, a set of duties is prescribed for the citizens. Though these duties are not enforceable by law, all responsible citizens should faithfully carry them out. For example, it is the duty of every Indian to abide by the constitution and to uphold its ideals, instructions and symbols. The national symbol of India include the national flag and national anthem. It is also the duty of every citizen to protect the sovereignty and integrity of the country.

The Directive Principles of State Policy

- The constitution lays down certain Directive Principles of State Policy , which not justiciable, are fundamental in governance of the country,' and it is the duty of the state to apply these principles in making laws. These lay down that the state shall strive to promote the welfare of people by securing and protecting as effectively as it may, a social order, in which justice- social, economic, and political- shall form in all institutions of national life. The state shall direct its policy in such a manner as to secure the right of all men and women to an adequate means of livelihood, equal pay for equal work and within limits of its economic capacity and development to make effective provision for securing the right to work, education and public assistance in the event of unemployment, sickness, old age and disablement.

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- The state shall also endeavor to secure to workers a living wage, humane conditions of work, a decent standard of life and full involvement of workers in management of industries.
- Some of the other important directives relate to provision of opportunities and facilities for children to develop in a healthy manner: free and compulsory education for all the children up to the age of 14: promotion of education and economic interests of SCs, STs and other weaker sections: organization of village panchayats: separation of judiciary from executive: protection of national monuments: provision of free legal aid: protection and improvement of environment and safeguarding of forests and wildlife of the country.

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- Framed by the Constituent Assembly of India, under the chairmanship of Dr. Rajendra Prasad, the Indian Constitution was adopted on 26 November 1949 and effective from 26 January 1950. It replaced the Government of India Act 1935.
- The constitution initially framed the:
 - Rights,
 - Duties,
 - Government and legal procedures,
 - Practices & Powers, &
 - Directive principles, for the government and citizens of India.

citizenship

- We find reference of citizenship in the constitution from Article 5 to 11. As per Article 5, all the people that were resident in India at the commencement of the constitution were citizens of India as well as people born in India. The Indian legislation related to this matter is the “The Citizenship Act 1955”, which has been amended by the Citizenship (Amendment) Acts of 1986, 1992, 2003, 2005, 2015 & 2019.
- The 1986 amendment restricted citizenship by birth to require that at least one parent must be an Indian citizen.
- The 2003 amendment further restricted that aspect by requiring that a parent could not be an illegal migrant. It also mandated the Govt. of India to construct a National Register of Citizens(NRC).

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- The 2019 amendment provided an easier path to citizenship for minorities persecuted based on religion, particularly Hindus, Sikhs, Buddhists, Jains, Parsi and Christians from the neighboring countries like Bangladesh, Pakistan and Afghanistan, who entered India before Dec. 2014.
- Article 9 says that a person who voluntarily acquires citizenship of any other country is no longer an Indian citizen. Also, according to Passport Act, a person has to surrender his/her Indian passport, voter card and other Indian identity cards must not be used after another country's citizenship is obtained.

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- The current Indian nationality law largely follows the citizenship by descent as opposed to citizenship by birth within the territory .
- The following are the modes for acquiring citizenship-
- By Birth
- By Descent
- By Registration, &
- BY Naturalization.

Constitutional Law

- The body of law that lays down the powers, role and structure of various entities within a state and the fundamental rights of the citizens. These entities of a state are legislature, executive and judiciary. Constitution Law is based on the Indian Constitution and is largely relies on rules and guidelines on the same.

Historical Background

- Historical background of Indian Constitution can be witnessed in the following sequence:
- The British influence between 1600 to 1765- East India Company came into existence on the last date of 1600 and The Royal Charter empowered the company to make bye-laws and issue order and ordinances for the good governances of the company. During this period Bombay, Madras and Calcutta became the chief settlement of presidencies of the Company.
- Charter of 1726 (Mayor's Court) - The charter of 1726 established Mayor's court that drew their power directly from the crown. It also provided for establishment of a corporation in each presidency town. The charter of 1762 is considered as a landmark in the history of legal system since it introduced English Laws in India.

Beginning of British Rule: 1765-1858

- The grant of DIWANI made the Company become true master(DIWAN) of the provinces of Bihar, Bengal and Orissa. This meant that the Company could collect revenue from these three provinces and also be responsible for Civil Justice there.
- During the period certain Acts made all these possible. Example-
- The Regulating Act 1773- The Act was passed to regulate the affairs of the company. The Act ensured Parliamentary control over the Court of Directors. Governor of Bengal was made the First Governor-General of Bengal. He was given the right to make rules and regulations over the three presidencies under the company. A supreme court was set up in Calcutta.

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- The Act of Settlement, 1781- The Act came into force to remove the defects of the Regulating Act. The Act exempted the company officials from implications of jurisdiction of the Supreme Court over any act done in the official capacity. Empowered the Governor-General to set regulations for provincial courts and councils.
- The Pitt's India Act, 1784- British Government claimed ownership over the territories owned by the company in India by calling the territories as "The British Possessions in India." Commercial and Political functions of the Company were distinguished by appointing separate Committees for the same.

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- The Chartered Act of 1813- East India Company's monopoly over Indian Trade was shut down. Indian Trade was made open to all British Subjects. British Crown asserted supreme power over the Councils.
- The Chartered Act of 1833- Governor-General of Bengal was made the Governor-General of India. Crucial step towards Centralization in British India. East India Company was turned into an Administrative body.
- The Chartered Act of 1853- This Charter Act carried on the task of separating the Legislative and Executive functions of the Council of the Governor-General. A separate Legislative Council was created for India

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- Recruitment of all Civil Servants of the Company was based on an open competition system. Finally, Indian Territories were transferred to the British Crown, thus the East India Company's career came to an end.

End of Company Rule: 1858-1919

- The Government of India Act, 1858- After the Revolt of 1857, the East India Company ended, and rule of the Company was replaced by the rule of British Crown. The British Queen issued a Royal Proclamation transferring the Government of India to the British Crown. Powers of the Crown were vested in the Secretary of State of India. Secretary of State was to be assisted by the 'Council of India,' consisting of 15 members. Secretary of State was vested with complete authority to regulate the Indian Administration through Viceroy and his agents.
- The Indian Council Act of 1861- Legislative Councils established in the provinces and the Centre. Legislative powers to Bombay and Madras provinces restored. Introduced Indirect Elections with partial representation of people. Redefined and further enlarged the functions of Legislative Councils

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- The Indian Councils Act of 1909: Morley Minto Reforms- Central Legislative Council was renamed as the 'Imperial Legislative Council'. Number of members of the Central Legislative Council were increased from 16 to 60. Direct elections were introduced to the Legislative Council. A Separate Communal Electorate was established for representing Muslims. India was included as a member in Viceroy's Executive Council.

Introduction to Self-Government: 1919-1947

- The Government of India Act, 1919: Montagu- Chelmsford Report- The Morley Minto Reforms failed because of lack of support towards Parliamentary form of Government which led to a need for new reforms. As a result, The Government of India Act was passed in 1919. This Act allowed for greater role and association of Indians in administrative matters. Governor was not responsible to the Legislative Council over the Reserved subjects. Bicameral Legislature was introduced at the Centre. A Public Service Commission was established in India. A necessary condition was also introduced, requiring 3 of the 6 members of the Viceroy's Executive Council to be Indians. Extended voting rights allowing 10% of the population their right to vote

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- Simon Commission, 1927- The British Government appointed the Simon Commission in 1927 under Stanley Baldwin to provide a report on the working of the Constitution of India, established by the government of India Act, 1919. In 1928, a group of 7 MPs were sent to India, from Britain to study the Constitution and suggest reforms or make recommendations to the government. The Commission composed purely of British people.
- Boycott of the Simon Commission: Indians got heated due to exclusion from the Commission, thus the Congress Party decided to boycott the Simon Commission at their session in Madras. Soon, the Muslim League also boycotted the Simon Commission.

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- The Government of India Act, 1935- Legislative power was bifurcated between Central and Provincial Legislature. Legislative power was further distributed among the Centre and States through Federal list, State list, and Concurrent list. The Act provided for the establishment of the All-India Federation consisting of both the British India provinces and Princely States (or any other States that desired to be a part of the Federation). The Act further proposed combining of British India Provinces and Indian States as a single unit. A Bicameral legislature was introduced. The Federal Court was established. Indian Council was abolished. Accession of states to the Federal was initiated and each ruler of such state had to sign an 'Instrument of Accession' at the time of joining. The Act continued till the Indian Constitution came into force.

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- Cripps Mission, 1942- In 1942, a mission was sent to India with Constitutional proposals. An elected body should be set up in India to frame the Indian Constitution. Provisions should be made to encourage the involvement of Indian states in the Constitution-making body. Elected people from the provincial legislatures and those nominated by the Indian Princess should be included in the Constitution drafting body. The British government shall accept the new constitution only if: (i) any province unwilling to join the Union can have a separate Constitution, forming a separate union, and (ii) the new constitution-making body and the British government would negotiate a treaty to safeguard religious and racial minorities and to give effect to the transfer of power.

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- The Cabinet Mission, 1946- The Cabinet Mission was introduced in India in March 1946. The mission was introduced with an attempt to reach an agreement with Indian leaders for framing of the Indian Constitution, to establish an Executive Council, and to formulate the Constituent Assembly of India. The mission proposed the inclusion of British India and the States in Union of India. The mission also suggested the setting up of an interim government with the support of major political parties.
- The Indian Independence Act, 1947- The Act provided for the creation of Indian and Pakistan as two independent dominions. It also provided for the partition of Punjab and Bengal. The Boundary Commission was to decide the boundaries between the two dominion states.

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- The Princely States received an independent choice to join either India or Pakistan or remain independent. The Constituent Assemblies of both countries were given the powers to frame a Constitution for their respective country. The British government would cease to have any control over the Dominions or Provinces, after the 15th of August 1947.

Framing of New Constitution, 1947-1950

- The Constituent Assembly came into force in 1946. Members of the assembly included Jawaharlal Nehru, Dr. Rajendra Prasad, Sardar Patel, Maulana Azad and many more. The first meeting of the Constituent Assembly took place in Dec. 1946. Dr. Rajendra Prasad was later appointed as chairman of the Assembly. A Drafting Committee was also established under the chairmanship of Dr. B.R. Ambedkar.
- In Jan. 1948, a draft of Indian Constitution was published, to which, various amendments were proposed and discussed. On 26 of Nov. 1949 the Constitution of India was passed and adopted. Finally, It came into force on 26 January 1950.